

**General Council
10-11 March 2026****WTO REFORM****WRITTEN REPORT BY FACILITATOR TO THE GENERAL COUNCIL***H.E. Mr Petter Ølberg (Norway) – Facilitator on WTO Reform***1 INTRODUCTION**

1.1. At the outset, let me state that this report to the General Council is submitted under my own responsibility and is without prejudice to the position of any Member.

1.2. At the December meeting of the General Council, I outlined my perspective on what reform at MC14 and beyond could entail. I suggested that Ministers could engage in a political-level discussion, including on foundational issues, and endorse a balanced plan for post-MC14 reform work, with clearly defined checkpoints and modalities. In this context, I proposed that our work in Geneva should focus on:

- a. Preparing the ministerial discussion on reform at MC14; and
- b. Developing a draft, balanced plan for WTO reform work post-MC14, including defining modalities such as checkpoints, responsibilities, and practical mechanisms to monitor progress and ensure transparency and accountability throughout the process.

1.3. To structure this work, I organized a WTO Reform Month in February built around two strands. The first focused on revising a draft Ministerial Statement on WTO Reform and a post-MC14 WTO Reform Work Plan, which I had prepared and circulated under my own responsibility for Members' consideration. This draft incorporated language on dispute settlement reform provided by the DSB Chair, following her consultations with Members in coordination with the GC Chair last year. The second strand focused on preparing for the political discussion among Ministers on WTO Reform in Yaoundé. This included framing the discussions, identifying key questions, planning for a substantive high-level political exchange, and considering how best to structure and capture the outcomes. To support this process, I circulated a draft set of guiding questions for Members' consideration. Following the reform breakout groups, I also conducted several bilateral consultations with interested Members.

1.4. To conclude the Geneva-based preparatory process on reform, I convened a plenary session on 5 March. At that meeting, I presented a revised draft Ministerial Statement and Work Plan and outlined how I intended to approach the March General Council meeting, including submitting the draft Yaoundé Ministerial Statement on WTO Reform and the draft WTO Reform Work Plan to Ministers in Yaoundé for their consideration and endorsement.

2 DISCUSSIONS DURING REFORM MONTH**2.1 Level of Ambition and General Views on the draft Ministerial Statement and Work Plan**

2.1. Members' constructive interventions during the reform month underscored the importance they attach to ensuring that the Geneva process delivers outcomes that Ministers can meaningfully consider in Yaoundé – namely, a balanced Ministerial Statement and Work Plan for adoption at MC14. In this context, in assisting Members to achieve this goal, I heard three broad perspectives:

- a. **A first group** does not support the adoption of a detailed Work Plan. They expressed concerns that the draft I circulated as a starting point conflated scope with objectives, appeared to predetermine outcomes, and did not incorporate sufficiently balanced safeguards. Their preference is for a concise Ministerial Statement that acknowledges progress to date and instructs officials to undertake transparent, inclusive, and Member-driven discussions in Geneva following MC14, under the authority of the General Council. Some also questioned whether there was consensus that the three tracks on which Members have been engaged should necessarily constitute the focus going forward. They indicated a preference that any post-MC14 work plan focus solely on process, with Members returning thereafter to determine the scope of work on the basis of their submissions and proposals.
- b. **A second group** could support a streamlined, high-level Ministerial Statement and Work Plan under the authority of the General Council, viewing it as pragmatic guidance that reflects Members' diverse inputs. In their view, the drafts preserve the Member-driven character of the process while maintaining flexibility to adapt as discussions evolve, thereby sustaining momentum towards necessary reforms.
- c. **A third group** is seeking a high level of ambition. They consider that the Work Plan should convey urgency, clarity of direction, and specificity regarding how the work will advance and what issues will be addressed. In their view, the plan should initiate substantive reform through clear timelines, prioritized tracks, and defined pathways to modernize rules. They caution that diluting the plan would risk entrenching the status quo. Accordingly, they support a Ministerial Statement that launches deep, substantive WTO reform, accompanied by a post-MC14 Work Plan under the authority of the General Council that leads to concrete outcomes.

2.2 Modalities for Post-MC14 Work

2.2. On how to move the work forward after MC14, Members also expressed the following views.

2.3. Some Members favour a process firmly anchored in Geneva under the authority of the General Council, with full Member control and flexibility to add issues as appropriate. They do not envisage a formal role for Ministers or Senior Officials in the post-MC14 phase beyond receiving progress reports, reviewing developments, and providing political guidance where necessary. They stress that any engagement of Ministers or Senior Officials should also take into account the capacity constraints of smaller delegations. From this perspective, the General Council should determine the specific modalities after MC14, including whether to designate Friends of the Facilitator or co-facilitators. They emphasize that shaping reform proposals and formulating recommendations to MC15 must remain firmly under Members' control in Geneva.

2.4. Others favour more structured and directive modalities, anchored in the General Council's designation of co-facilitators to drive progress. They advocate for concrete deliverables, milestones, and clearly defined responsibilities. In this view, the modalities should be sufficiently detailed to enable substantive reform discussions to commence immediately after MC14. They call for ambitious, operational, and forward-looking arrangements, with clarity on sequencing, timelines, reporting lines, and decision points to ensure momentum and accountability across all reform areas. While affirming that Members in Geneva should retain control over shaping reforms and making recommendations to MC15, this group would also welcome periodic ministerial engagement to review progress and provide additional political direction where necessary.

2.5. With respect to the possible designation of Friends of the Facilitator or Co-Facilitators to organize specific work streams, Members sought clarity on several issues: (i) the process for their appointment; (ii) the criteria for their selection, with many emphasizing the need to ensure appropriate regional representation and development balance; (iii) their number; and (iv) how their work would be coordinated to ensure transparency, coherence across tracks, and full participation by all Members, taking into account the capacity constraints of resource-constrained delegations. These questions are closely linked to whether work across the various tracks would proceed in parallel or sequentially.

2.6. Regarding indicative timelines, some Members prefer that the General Council determine these after MC14. Others caution against limiting reform discussions to only four General Council meetings between MC14 and MC15, noting that insufficient clarity on timelines could lead to delays and risk undermining momentum.

2.3 Decision-making

2.7. The perspectives on the practice of decision-making by consensus that I heard in consultations leading up to the December General Council were reiterated.

2.8. **No Member challenges decision-making by consensus.** All Members acknowledge its importance as it ensures they have an equal voice in decision-making.

2.9. Many Members stressed the need to safeguard consensus as a core principle. In their view, introducing "flexibility" risks diluting the efficacy of consensus and could weaken confidence in the system. They emphasized that this workstream should remain fact and evidence-based, focusing on practical ways to strengthen consensus-building in practice rather than altering its foundations.

2.10. Others reiterated calls for greater flexibility, including exploration of decision thresholds for different types of WTO decisions and other tools used in the WTO and other international organizations to address challenges such as delays in reaching decisions. In this context, some advocated reviewing whether existing WTO bodies and structures remain fit for purpose in facilitating consensus-building and delivering timely, meaningful outcomes within an increasingly large and diverse Membership. There are also Members who support exploratory work, but within clearly defined parameters to avoid prejudging outcomes or inadvertently weakening consensus. They underscore the importance of transparently mapping options, clarifying implications, and focusing on how consensus can function more effectively in practice.

2.11. Many Members view the plurilateral pathway as the most viable approach in the context of an evolving and diverse Membership with differing priorities and levels of ambition. They expect the Work Plan to prioritize practical facilitation of plurilateral initiatives including their integration into the WTO – recognizing Article X:9 and Annex 4 of the Marrakesh Agreement. In this view, the legal framework for integrating plurilateral outcomes is clearly established, and discussions should focus on enabling such agreements to advance. Others, however, consider that discussions on plurilaterals should be subject to clear guardrails. They argue that Members should first assess whether integration of a specific plurilateral outcome is appropriate, define conditions, criteria, and legal safeguards for such integration, and carefully map available options without prejudging outcomes. From this perspective, the Work Plan should not presume integration of plurilateral outcomes and should, at most, reaffirm that any incorporation into the WTO framework requires consensus and that Members must safeguard the multilateral character of the system.

2.4 Development

2.12. There was broad agreement that development should be reflected in the Work Plan. Many Members called for a strengthened development reform workstream focused on implementing outstanding development-related mandates, safeguarding policy space to support industrialization, economic diversification and structural transformation, and addressing issues such as agriculture trade, food security, structural imbalances, technology transfer and market access. Others favoured anchoring this workstream in existing rules, viewing them as key enablers of economic growth, integration into global value chains, and digital and green transitions, including artificial intelligence, within a predictable, transparent and non-discriminatory multilateral trading system. At the same time, some Members cautioned against the use of ambiguous terminology such as "policy space", questioned whether the WTO is the appropriate forum to address global value chain resilience, and underscored that the WTO is neither a development bank nor a technical assistance agency.

2.13. With respect to special and differential treatment (S&DT), concerns were raised regarding the use of the term "targeted", particularly given its linkage to the existing mandate to make S&DT precise, effective and operational. In this context, some Members suggested that reform discussions should begin with a diagnosis of imbalances in existing agreements and focus on operationalizing S&DT accordingly. Others expected the Work Plan to examine ways to tailor S&DT more closely to the diverse needs and levels of development across the Membership, including by clarifying criteria for access. At the same time, several Members emphasized the need for neutrality and balance, cautioning against any predefined direction that could narrow access to S&DT or prejudge outcomes.

2.5 Level Playing Field

2.14. On level playing field issues, some Members expressed concern about the lack of clarity regarding the scope of discussions. In this regard, they called for greater precision in the text – without upsetting its overall balance – through explicit references to industrial policy and related measures, state intervention, and possible updates to the Agreement on Subsidies and Countervailing Measures (ASCM). They proposed a two-stage process comprising: (i) the mapping of relevant issues and an assessment of compliance; and (ii) the identification of gaps in transparency, disciplines and remedies. The objective, in this view, would be to secure a specific mandate to launch negotiations, as appropriate, with clearly defined outputs and milestones in the lead-up to MC15. Some also advocated for tighter drafting of the Work Plan to avoid an overly broad or indeterminate scope and to ensure that post-MC14 work is clearly directed toward substantive recommendations at MC15.

2.15. Other Members favoured a balanced approach that would pair effective disciplines with appropriate flexibility to pursue development policy objectives, recognize the development dimension of level playing field concerns, address emerging agricultural trade issues, and respect the diversity of Members' economic systems and stages of development, while enhancing transparency as a means of building trust without imposing additional burdens to resource-constrained Members.

2.6 Foundational Issues

2.16. A wide range of views was expressed on foundational issues. Positions ranged from those who consider that these issues should feature prominently in the Work Plan to those who do not support their inclusion. Members in the former group, while actively engaging in discussions on the three initial focus areas – decision-making, development and level playing field – view foundational issues as integral to the overall scope of the reform exercise. They therefore expect the Work Plan to provide space to address these matters, recognizing that they have not yet been explored in the same depth as the other focus areas. In their view, the prominence given to certain issues should not be interpreted as limiting the range of topics Members may raise in the reform process, and consideration of these issues should proceed without prejudging outcomes.

2.17. Against the backdrop of the current global trading environment, issues identified by some Members include the most-favoured-nation (MFN) principle, reciprocity, the balance of rights and obligations, tariffs, the use of GATT Articles XX and XXI exceptions, unilateral measures, and the role of the Secretariat. For these Members, reform would not be meaningful without engaging with what they consider to be the pressing systemic issues of the day.

2.18. At the same time, other Members expressed serious reservations about addressing some or all of these foundational issues in the context of reform. They stressed that the objective should be to safeguard, rather than reopen or renegotiate, core principles – preserving MFN and non-discrimination, maintaining development at the centre of multilateralism, updating rules only in ways that reinforce – not dilute – the multilateral character of the system, ensuring a neutral Secretariat in the service of Members, and avoiding the transformation of foundational principles into a negotiating agenda.

2.7 Dispute Settlement

2.19. Many Members regard dispute settlement reform as a cornerstone of broader reform efforts in the WTO, emphasizing that a reformed WTO must include a fully and well-functioning mechanism for the resolution of trade disputes among Members. Several Members consider that the Work Plan should incorporate dispute settlement reform as a central post-MC14 workstream, with clearly defined scope, milestones and deliverables, and to develop recommendations for MC15, with a view to ensuring a dispute settlement system that is fully operational and accessible to all Members.

2.20. While acknowledging the importance of this issue, other Members consider that discussions should resume after MC14 when conditions are conducive, and that such work should take place in the Dispute Settlement Body.

2.8 General Views on the Guide Questions for Ministers' Political Discussion

2.21. Feedback indicated that the guide questions for Ministers should be concise, high-level, and sufficiently broad and open-ended to allow Ministers to express a range of perspectives. It was frequently noted that, although intended as guidance, the questions would not limit Ministers, who would in any event raise issues of their choosing. Overall, many Members considered that the draft questions were moving in the right direction, recognizing that Ministers would ultimately articulate the priorities they deem relevant.

2.22. Some Members suggested avoiding overly technical language and framing the questions in a manner that fosters a constructive environment for frank and cordial exchanges, while providing appropriate direction for reform work. Others emphasized the importance of maintaining balance across Members' priorities, avoiding language that could prejudge the outcomes of Ministerial discussions, and ensuring that the questions are well suited to the nature and level of Ministerial deliberations.

2.8.1 Past Mandates

2.23. Several Members suggested reframing the question on past mandates to clarify the objective of the discussion and to seek Ministerial guidance for Geneva-based officials on how to advance implementation. Others questioned whether a focus on past mandates was suitable for a high-level dialogue, proposing instead that Ministers be invited to reflect on how such mandates fit within an evolving global economy.

2.24. Concerns were also expressed that this discussion may be premature for MC14, with some Members emphasizing the need for a thorough examination in Geneva of which mandates remain unfulfilled, so as to lay a solid foundation for a more productive Ministerial engagement at a later stage. Others cautioned against asking Ministers to provide guidance on implementing mandates that they had already instructed officials to carry out. It was suggested instead that any Ministerial exchange on this issue could be framed in the context of addressing the trust deficit within the Membership, including by exploring how the fulfilment of past mandates could contribute to rebuilding trust among Members and strengthening confidence in the WTO.

2.9 Capturing Ministers' WTO Reform Conversations at MC14

2.25. Members put forward a number of suggestions regarding transparency and reporting Ministers' MC14 conversations. These included: (i) adopting a three-tier approach consisting of listening-in rooms to enable delegations to follow all discussions, standardized factual summaries prepared by each Minister Facilitator reflecting areas of convergence and divergence across sessions, and the circulation of minutes following MC14; (ii) each Minister Facilitator issuing a factual summary of their respective sessions for reference purposes only; (iii) designating one Minister Facilitator to prepare a single factual summary on behalf of all Facilitators; and (iv) clarifying that any summary or document produced would be prepared under the responsibility of the relevant Minister Facilitator, serve solely as a reference, and not constitute a negotiated outcome or a Ministerial mandate for post-MC14 reform work.

2.10 Parameters

2.26. In finalizing the draft Ministerial Statement and the Post-MC14 Reform Work Plan, I was guided by several broad parameters reflected in Members' interventions during Reform Month:

- a. to ensure that the texts remain ministerial in nature and sufficiently high-level, while providing the necessary political direction from Ministers;
- b. to avoid prejudging issues or the direction of reform, and to reflect the diversity of views across the Membership;
- c. to keep the drafts as streamlined as possible, while still offering clear guidance for post-Yaoundé work – striking an appropriate balance between excessive detail and insufficient substance;

- d. to build upon the work undertaken since June 2025;
- e. to reflect areas where Members have recently focused attention – decision-making, development and special and differential treatment (S&DT), and level playing field – as a starting point, together with key activities to be pursued after MC14;
- f. to address dispute settlement reform in coordination with the Chairs of the General Council (GC) and the Dispute Settlement Body (DSB);
- g. to retain sufficient flexibility to allow additional issues to emerge, without prejudging outcomes;
- h. to treat WTO reform as an ongoing process, not constrained by rigid timelines but structured around clear checkpoints; and
- i. to ensure that the process remains Member-driven, transparent, inclusive and balanced, and conducted under the authority of the General Council.

3 DRAFT YAOUNDÉ MINISTERIAL STATEMENT ON WTO REFORM

3.1. Based on Members' views, the draft Yaoundé Ministerial Statement on WTO Reform conveys the following key messages:

- a. It recognizes both the contribution and continued value of the World Trade Organization, while acknowledging the challenges that call for meaningful reform.
- b. It reflects the reality that Members hold differing perspectives on the nature and scope of those challenges.
- c. It affirms Ministers' shared commitment to meaningful and substantive reform, and to acting with urgency and in good faith following MC14, while recalling the outcomes of MC12 and MC13.
- d. It instructs officials to intensify their work with a view to delivering concrete and substantive recommendations for action by MC15.
- e. It commits to undertaking a mid-term review in advance of MC15 to assess progress and provide further guidance, as appropriate.

4 DRAFT POST-MC14 WORK PLAN ON WTO REFORM

4.1. Based on Members' views, it is clear that the Work Plan should not prejudge outcomes and that post-MC14 reform discussions should commence promptly, focusing on substance rather than process. In line with this, the revised Post-MC14 Work Plan on WTO Reform includes the following elements:

- a. **Decision-Making, Development and Level Playing Field as a Starting Point:** Ministers will note that reform discussions in Geneva have centred on decision-making, development, and level playing field issues as a starting point. This focus is reflected in this report, previous reports, and the recent work detailed in the Annex of the Draft Ministerial Statement. Ministers will also acknowledge their own exchanges on these topics in Yaoundé and agree that they will remain central to reform discussions post-MC14.

To maintain a high-level focus while recognizing the work undertaken, the annex frames starting points using the language "**determine if we need and how to**", explicitly avoiding any perception of prejudging the direction or outcomes of the reform process. Four recurring messages have consistently emerged throughout the process:

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- i. **Decision-making:** No Member questions the practice of decision-making by consensus. There is, however, shared frustration with the practical challenges in reaching decisions.
 - ii. **Development:** Development is a central and cross-cutting theme in the WTO's work. Trade and WTO rules are widely recognized as enablers of growth, development, and integration into global value chains. The key question is how rules can better support these objectives given the diversity of Members' development needs.
 - iii. **S&DT:** While development is not synonymous with special and differential treatment (S&DT), S&DT remains an important tool. No Member advocates its elimination. Concerns focus on effectiveness and access to it.
 - iv. **Level Playing Field:** Nearly all Members agree that this is the most complex reform workstream due to the depth of issues and differences in perspectives. Nonetheless, all Members recognize its importance.
- b. **Foundational Issues:** Ministers will recall discussions on foundational WTO principles. This element responds to the strong interest expressed by many Members, particularly given today's global trade context. Issues raised include systemic issues such as WTO principles and the balance of rights and obligations, as reflected in Members' submissions and in the reform process since June 2025.
- c. **Dispute Settlement:** Given the high priority many Members place on dispute settlement reform, Ministers will:
- i. acknowledge that the WTO Dispute Settlement System is not fully and well-functioning and requires reform; and
 - ii. agree that consultations on dispute settlement reform, under the auspices of the Dispute Settlement Body (DSB), should resume following MC14.
- d. **Modalities:** Many Members emphasized the need for clarity on how work will resume post-MC14. Under this section, **Ministers** will:
- i. underscore that the work will be conducted under the authority of the General Council and that dispute settlement reform will be under the auspices of the DSB – emphasizing that the WTO Reform process shall be Member-driven, open, transparent and inclusive manner that reflects the interests of all Members.
 - ii. have the GC Chair appoint facilitators for Decision-Making, Development, and Level Playing Field issues, clarify that the WTO Reform Facilitator will lead Members' discussions on foundational issues and underscore that the facilitators will organize the work – in an inclusive manner – with the objective of building convergence based on Members' submissions and contributions.
 - iii. emphasize that, under the guidance of the General Council Chair, the WTO Reform Facilitator will continue to oversee and coordinate the overall process in a holistic manner, including the three initial workstreams, ensure coherence across the workstreams and avoid scheduling overlaps – and that the capacity constraints of Members, especially of resource-constrained delegations, will be taken into account in scheduling meetings.
 - iv. establish indicative timelines and checkpoints, including reporting to the General Council and a mid-term review ahead of MC15; and
 - v. maintain flexibility in the Work Plan to ensure agility and responsiveness.

4.2. This structure ensures that post-MC14 work begins with a clear, balanced, and actionable foundation while preserving the flexibility necessary to respond to evolving priorities and Member concerns.

5 MINISTERIAL DISCUSSIONS AT MC14

5.1 Guiding Questions

5.1. Under my responsibility, I prepared draft questions that could assist in structuring Ministers' WTO Reform discussions at MC14. Based on Members' feedback, they have been revised to remain high-level while capable of eliciting useful political guidance. These questions will be sent to Ministers to help guide their exchanges – cautious that Ministers will say what they want to say.

5.2. The questions are as follows:

Session 1 – Foundational Issues on WTO, including its principles

How do Ministers assess the role, relevance, and value of the WTO in today's global economic landscape, and what kind of organization do Members want the WTO to be?

Session 2 - Decision-making and Past Mandates

In the context of a large and diverse Membership, what guidance can Ministers provide for navigating the challenges of reaching decisions by consensus?

How do Ministers view the role of plurilateral initiatives?

How can Ministerial guidance support officials in addressing past mandates while respecting differing interpretations and priorities among Members?

Session 3 – Development

What reforms, in the WTO, would better enable Members, including developing and LDC Members, to achieve economic growth, development and prosperity through trade?

What role should S&DT play, and how can it be made more effective?

Session 4 – Level Playing Field Issues

What challenges need to be addressed to ensure a level playing field for all, and what reforms are required?

6 FACILITATOR'S ASSESSMENT AND RECOMMENDATION

6.1. Since June 2025, we have invested nine months of sustained, collective effort in good faith. That effort has produced a draft Yaoundé Ministerial Statement on WTO Reform and a draft Work Plan. If full satisfaction remains elusive, it is because the balance we have struck is genuine – and because we have reached the practical ceiling of what can responsibly be achieved here in Geneva.

6.2. As Facilitator of a Member-driven process, I remain entirely at Members' disposal. I recognize that concerns on the drafts persist. Yet my honest assessment is this: further drafting alone will not resolve them. Some Members seek a ministerially endorsed work plan to provide capitals with clarity on process and substance, and to signal that work will continue beyond MC14 toward meaningful reforms at MC15. Others see no need for that, believing discussions will advance organically after MC14. I respect both perspectives. But both lead to the same conclusion: our next steps depend on Members' political will – including those of Ministers in Yaoundé – to drive reform after MC14.

6.3. At this juncture, we must be clear about what is at stake: the WTO stands at a pivotal moment. Reform must mean change, not a restatement of the status quo. If we fail to adapt, confidence among businesses, workers, and citizens will erode. The greatest risk is not doing too much but doing too little. Irrelevance would expose all Members – large and small, developed and developing – to unilateralism, power-based outcomes, and fragmentation. The global landscape demands pragmatism, responsiveness, and good faith. Preserving the WTO requires continuous adaptation – sustained engagement, openness to differing perspectives, and the courage to adjust while remaining true to the WTO's ethos.

6.4. I recognize that some view any draft as unnecessary or even counterproductive. Yet when the trading system faces real-world stress and volatility affects firms and families, credible commitments reduce risk. Agreeing a concise ministerial commitment is not an empty gesture: it anchors expectations, guides capitals, steadies markets, and buys time for needed reform. Endorsing the Yaoundé Ministerial Statement on WTO Reform and the draft Work Plan signals unity of purpose, clarifies direction, and preserves stability while deeper changes are developed. One page – if it speaks with one voice – can be a signal in the storm: a clear pledge to pursue meaningful reform that restores stability and predictability to the multilateral trading system. It is a commitment that provides reassurance today and a path to better rules tomorrow.

6.5. It is in this spirit that I submit the draft Yaoundé Ministerial Statement on WTO Reform and the draft WTO Reform Work Plan to the General Council for Ministers' consideration and endorsement at MC14.

ANNEX TO [JOB/GC/491](#)**DRAFT YAOUNDÉ MINISTERIAL STATEMENT ON WTO REFORM**

We recognize the contribution of the WTO to the economic growth of its Members over the past 30 years and that it continues to perform valuable functions. At the same time, we acknowledge that the WTO faces serious challenges that require meaningful reform. While we hold differing views on the challenges, we commit to work urgently and in good faith following MC14 to advance reforms, recalling MC12 and MC13. In this context, we instruct our officials to intensify their work with a view to providing concrete and substantive recommendations for action by MC15. We will undertake a mid-term review in advance of MC15 to assess progress and provide further direction.

WTO REFORM WORK PLAN**Decision-Making, Development and Level Playing Field Issues – as a starting point**

Ministers note that, as a starting point, Members engaged in reform discussions leading up to MC14 that were focused on three areas: **Decision-making; Development, and Level Playing Field** as reflected in the Reform Facilitator's Reports¹ and the Annex to this statement. Ministers engaged in discussions on these areas at Yaoundé and agree that these three issues will continue to be a focus of work on reform post MC14.

Foundational and other issues

Ministers also had discussions on Foundational Issues at MC14 – including systemic issues such as WTO principles and the balance of rights and obligations. Post MC14 discussions will include these issues.

Dispute Settlement

Members acknowledge that the WTO Dispute Settlement System is not fully and well-functioning and needs to be reformed. Members agree that consultations on dispute settlement reform, under the auspices of the Dispute Settlement Body (DSB), should continue following MC14.

Modalities

Authority: Work will be conducted under the authority of the General Council. Dispute Settlement Reform will be under the auspices of the DSB. The WTO Reform process shall be Member-driven, open, transparent, and inclusive, and address the interests of all Members.

The General Council Chair will appoint facilitators for Decision-Making, Development, and Level Playing Field issues. The WTO Reform Facilitator will lead Members' discussions on foundational issues. The facilitators will organize the work – in an inclusive manner – with the objective of building convergence based on Members' submissions and contributions.

Under the guidance of the General Council Chair, the WTO Reform Facilitator will continue to oversee and coordinate the overall process in a holistic manner, including the three initial workstreams, ensure coherence across the workstreams and avoid scheduling overlaps. The capacity constraints of Members, especially of resource-constrained delegations, will be taken into account in scheduling meetings.

Indicative Timelines/checkpoints: Work will resume in April 2026.

Progress reports to the General Council will be provided in July 2026, December 2026, July 2027, and December 2027, with senior officials participating as necessary. Ministers will conduct a midway review ahead of MC15.

¹ JOB/GC/483 and JOB/GC/491. The Facilitator's reports do not represent consensus documents but are issued under the Facilitator's responsibility.

Flexibility: The Work Plan is designed to remain flexible to ensure responsiveness and institutional agility. The identification of any particular issue as a "focus" issue or an otherwise important issue will not be interpreted in any way as limiting the scope of issues Members can address in the reform process or imply any particular sequencing. Moreover, this reform process will be without prejudice to work in any WTO committee or other body.

ANNEX²

Decision-making: determine if we need and how to: (i) rebuild trust in decision-making through a clearer understanding of the factors contributing to recurring delays in reaching consensus, (ii) improve efficiency, flexibility and outcome orientation in decision-making, and (iii) facilitate the integration of plurilateral outcomes into the WTO and consider guardrails.

Development: determine if we need and how to: (i) examine how rules can more effectively enable integration into global value chains in a manner that supports economic growth and prosperity, while exploring appropriate policy space for industrialization, structural transformation, and economic diversification, (ii) make S&DT precise, effective, operational, and explore approaches to S&DT which better reflect the diversity of needs and levels of economic development amongst the Membership, and (iii) strengthen technical assistance and capacity building, monitoring and institutional coherence.

Level playing field (LPF) issues: determine if we need and how to: (i) identify areas for focused work and the relevant WTO rules, (ii) improve transparency, notification and compliance and, (iii) make relevant rules and disciplines more effective in addressing concerns, including distortions from state intervention in the industrial sector, as well as emerging agricultural trade issues, on separate tracks, while exploring flexibility for development policy objectives.

Key Activities (can be undertaken in parallel):

- a. **Decision-making:** compile factual evidence and take stock of (i) past mandates; and (ii) tools/practices used to facilitate consensus-based decision-making; and (iii) explore if and how different decision thresholds could apply to different types of WTO decisions
- b. **Development:** compile and analyse information on: (i) S&DT usage, beneficiaries, effectiveness, and gaps, (ii) WTO provisions relevant to industrial development and, (iii) WTO technical assistance and capacity-building programs.
- c. **LPF issues:** (i) map level-playing field concerns, including in the industrial sector and emerging agricultural trade issues and identify areas for focused work; (ii) identify gaps in transparency, notifications, disciplines and remedies and underlying reasons; (iii) review and assess which additional and updated rules and disciplines are needed to address identified concerns while exploring flexibility for development policy objectives;
- d. Based on a-c above, determine needed reforms and develop recommendations including options for action.

Foundational and other issues: discussions will continue following MC14, based on Members' submissions and taking into account Ministers' exchanges at MC14.

Dispute Settlement Reform: consultations will continue following MC14, under the auspices of the Dispute Settlement Body (DSB).

² This Annex reflects discussions since January and recognizes that there are differences of views and perspectives. It is a reference guide and does not prejudice any Member's position.